

Soma Kaushik Reddy vs The State Of Telangana.,Rep.,Pp on 7 January, 2022

Author: G. Radha Rani

Bench: G. Radha Rani

THE HON'BLE Dr. JUSTICE G. RADHA RANI

CRIMINAL PETITION No.7085 of 2015

ORDER:

This petition is filed by the petitioner-A1 under Section 482 Cr.P.C. to quash the proceedings in Crime No.23 of 2013 on the file of Women Police Station, Saroornagar, Cyberabad, Ranga Reddy District, which was later amended as PRC No.131 of 2020 before the V Additional Metropolitan Magistrate cum Additional Junior Civil Judge, Cyberabad, L.B. Nagar.

2. The petitioner submitted that the 2nd respondent - de facto complainant was his wife. She lodged a report before the Woman Police Station, Saroornagar against him and his parents, sister and brother-in-law under Sections 307, 498-A IPC and Sections 3 and 4 of the Dowry Prohibition Act (for short 'DP Act'). As per the report given by the 2nd respondent, she was married with the petitioner on 19.02.2009 and at the time of marriage, on the demand of the petitioner and his parents, her parents gave two plots worth about Rs.1.00 crore as dowry, cash of Rs.10.00 lakhs, a diamond ring worth Rs.50,000/-, Rs.2.00 lakhs for purchase of clothes and 100 tulas of gold and 10 kgs., of silver. After marriage, she joined the petitioner for marital life and stayed with him in India for one month under one roof and after that she went to Sydney, Australia along with the petitioner. Thereafter, the petitioner and his parents harassed her for additional dowry of Rs.35.00 lakhs. On the demand of the petitioner and his parents, the father of the 2nd respondent gave Rs.15.00 lakhs Dr.GRR,J on 10.02.2011 to purchase a house in Australia, but the petitioner and his parents were not satisfied with the given amount and harassed her for additional dowry of Rs.35.00 lakhs. She worked in Sydney along with the petitioner, but the petitioner always harassed, abused and bet her. On 16.12.2012, her parents-in-law came to Sydney and they started harassing her along with the petitioner for want of additional dowry. The petitioner forcibly got aborted her pregnancy twice. Her sister-in-law Sushmita and her husband Venkat Ram Reddy also instigated the petitioner to harass her. Every week they used to come to their house in Sydney, abuse her in filthy language and harass her. The petitioner forcibly indulged in sex with her on the same day of her abortion. On 09.02.2013, the petitioner picked up a quarrel with her, abused her in filthy language and started beating her. He bet her on her waist with beer bottle (broken bottle) and caused injuries to her and hit her to the wall and dragged on the floor. She sustained several injuries on her body. He tried to kill her, throttled her neck. She fell down in unconscious state. One of her friend reached the spot and she escaped from his hands. On the next day, she explained the incident to her parents and requested them to take her back to India. On her request, her father booked a ticket to India and she came back to India on 13.02.2013. Basing on the said complaint, the police registered a case vide Crime No.23 of 2013 for the above offences and after investigation, filed charge sheet against the

petitioner stating that a supplementary charge sheet would be filed against A2 to A5 whenever stay was vacated by this Court. The same was taken Dr.GRR,J cognizance by the V Metropolitan Magistrate cum Additional Junior Civil Judge, Cyberabad, L.B. Nagar, numbered as PRC No.131 of 2020.

3. Heard the learned counsel for the petitioner and the learned Public Prosecutor. No representation for the 2nd respondent - de facto complainant. The notice sent to her was returned as 'unclaimed', hence, considered it as deemed service.

4. Learned counsel for the petitioner submitted that the 2nd respondent was not an Indian citizen. She was an Australian citizen. Similarly, the petitioner was also an Australian citizen. As per the averments of the complaint, no offence was committed on the Indian soil by any of the accused, as such, the Indian Police and the courts had no jurisdiction to entertain the complaint. No medical reports were filed by her to show that she sustained serious injuries. If the petitioner had hit her with a broken beer bottle, she would not have survived or atleast would have sustained serious injuries. But, she came back to India intact on 12.02.2013 itself.

5. He further submitted that the petitioner along with A2 to A5 filed Crl.P. No.14209 of 2013 before this Court for quashing of FIR. This Court by order dated 31.12.2013 granted stay of investigation in the said crime against A2 to A5. On some technical grounds, the petition was withdrawn against A1. After granting stay of investigation, the petitioner and the 2nd respondent at the intervention of the elders and well-wishers compromised the matter and also filed divorce petition under mutual consent before the Family Court at Dr.GRR,J Hyderabad vide OP No.108 of 2015. Both parties had agreed to withdraw the criminal cases against each other. Divorce was granted. The 2nd respondent left to Australia and she was not coming forward for recording the compromise before the criminal court and he relied upon the judgment of the Hon'ble Apex Court in Ruchi Agarwal v. Amit Kumar Agrawal and others¹ and the judgment of this Court in Pankaj Kumar Nimayat and others v. State of A.P. and others².

6. Learned Public Prosecutor reported to decide the petition on merits.

7. Perused the record. The 2nd respondent made serious allegations against the petitioner in her report before the Police on 13.02.2013. The police also filed charge sheet and the same was taken cognizance by the court and numbered as PRC No.131 of 2020. However, subsequent to registering of the case, the parties compromised the matter and filed a petition for mutual consent divorce under Section 13-B of the Hindu Marriage Act vide OP No.108 of 2015 before the Family Court, City Civil Court, Hyderabad. In the said petition, which was signed by the respondent No.2 along with the petitioner, it was stated that:

"3. That as decided by the Petitioners and their elders, the Petitioner No.1 has paid already a sum of Rs.10,00,000/- (Rupees ten lakhs only) to the Petitioner No.2 and her parents towards refund of the amount paid by the parents of the Petitioner No.2 at the time of marriage and the receipts of the said sum is acknowledged by the Petitioner No.2 and her parents and have executed a separate receipt thereof. The

205 (3) SCC 299 2021 (2) ALD (Crl.) 143 Dr.GRR,J petitioner No.1 also has already returned the gold articles, diamond ring, ordinary ring chain bracelet and other silver articles to the Petitioner No.2 and her parents that were presented to the Petitioner No.1 at the time of marriage.

4. That was decided by both the Petitioners and their elders, the Petitioner No.1 should pay a sum of Rs.19,00,000/- (Rupees nineteen lakhs only) to the Petitioner No.2 and her parents towards refund of the amount which the parents of the Petitioner No.2 paid to the Petitioner No.1 i.e. Rs.15,00,000/- for purchasing a house at Australia in the joint names of the Petitioners and Rs.4,00,000/- towards cost of furniture that was given to the Petitioner No.1 at the time of marriage, before Counsels of both the Petitioners as on the date of granting mutual divorce by the Hon'ble Court.

5. That the Petitioner No.2 specifically agreed that she will not claim any permanent alimony or future maintenance against the Petitioner No.1 or his parents and she voluntarily waived/relinquished her right of permanent alimony and maintenance and she hereby undertaken and covenants with the Petitioner No.1 that in future she will not claim any permanent alimony or maintenance against the Petitioner No.1 and his parents. The petitioners do not have any manner of right or claim over the respective properties of each other.

6. It is mutually agreed between the Petitioners that the criminal case in Cr.No.23/2013 filed by the Petitioner No.2 against the Petitioner No.1, his parents, sister and brother-in-law, under Sections 498-A IPC and 3 and 4 of the D.P. Act shall be withdrawn/compounded by the Petitioner No.2 and which is now pending on the file of the XIV Metropolitan Magistrate, Cyberabad at L.B. Nagar, after passing the decree of divorce. Similarly, the Petitioner No.1 should withdraw the criminal cases if any filed by him against the Petitioner No.2 at Sydney, Australia, before granting the decree of divorce to the Petitioners."

8. It was reported by the learned counsel for the petitioner that mutual consent divorce was granted by the court, but the Dr.GRR,J 2nd respondent was not coming forward for recording the compromise and failed to withdraw the criminal case filed by her against the petitioner and his parents, sister and brother in law.

9. The Hon'ble Apex Court in Ruchi Agarwal case (1 supra), wherein on similar facts, the wife filed a criminal complaint against the husband for dowry harassment and under Sections 3 and 4 of the D.P. Act and also filed a maintenance case under Section 125 Cr.P.C. and a divorce petition before the Family Court and during the pendency of the said cases entered into a compromise and agreed to withdraw all the criminal and civil cases filed against each other which includes the criminal complaint filed by her, but after granting of divorce under Section 13 B of the Hindu Marriage Act, dissolving marriage by mutual consent, did not come forward to withdraw the criminal cases, the Hon'ble Apex Court, considering the facts of the case and the conduct of the appellant therein, held

that continuation of the criminal proceedings is an abuse of process of law and quashed the same.

10. The observations of the Hon'ble Apex Court in the said case are as under:

"5. In the compromise petition, referred to herein above, both the parties had agreed to withdraw all the civil and criminal cases filed by each against the other. It is pursuant to this compromise, the above divorce as sought for by the appellant was granted by the husband and pursuant to the said compromise deed the appellant also withdrew Criminal Case No.63 of 2002 on the file of the Family Court, Nainital which was a complaint filed under Section 125 of the Criminal Procedure Code for maintenance. It is on the basis of the submission made on behalf of the appellant and on the basis of the terms of the compromise, said case came to be dismissed. However, so far as the complaint under Sections 498A, 323 and 506 IPC and under Sections 3 and 4 of the Dr.GRR,J Dowry Prohibition Act is concerned, which is the subject matter of this appeal, the appellant did not take any steps to withdraw the same. It is in those circumstances, a quashing petition was filed before the High Court which came to be partially allowed on the ground of the territorial jurisdiction, against the said order the appellant has preferred this appeal.

6. From the above narrated facts, it is clear that in the compromise petition filed before the Family Court, the appellant admitted that she has received Stridhan and maintenance in lump sum and that she will not be entitled to maintenance of any kind in future. She also undertook to withdraw all proceedings civil and criminal filed and initiated by her against the respondents within one month of the compromise deed which included the complaint under Sections 498A, 323 and 506 IPC and under Sections 3 and 4 of Dowry Prohibition Act from which complaint this appeal arises. In the said compromise, the respondent- husband agreed to withdraw his petition filed under Section 9 of the Hindu Marriage Act pending before the Senior Judge, Civil Division, Rampur and also agreed to give a consent divorce as sought for by the appellant.

7. It is based on the said compromise the appellant obtained a divorce as desired by her under Section 13(B) of the Hindu Marriage Act and in partial compliance of the terms of the compromise she withdrew the criminal case filed under Section 125 of the Criminal Procedure Code but for reasons better known to her she did not withdraw that complaint from which this appeal arises. That apart after the order of the High Court quashing the said complaint on the ground of territorial jurisdiction, she has chosen to file this appeal. It is in this background, we will have to appreciate the merits of this appeal.

8.....Therefore, we are of the opinion that the appellant having received the relief she wanted without contest on the basis of the terms of the compromise, we cannot now accept the argument of the learned counsel for the appellant. In our opinion, the conduct of the appellant indicates that the criminal complaint from which this appeal

arises was filed by the wife only to harass the respondents.

9. In view of the above said subsequent events and the conduct of the appellant, it would be an abuse of the process of the court if the criminal proceedings from which this appeal arises is allowed to continue. Therefore, we are of the considered opinion to do complete justice, we should while dismissing this appeal also quash proceedings arising from the Criminal Case No.Cr.No.224/2003 registered in Police Station, Bilaspur, (Distt.Rampur) filed under Sections 498A, 323 and 506 IPC and under Sections 3 and 4 of the Dowry Prohibition Act against the respondents herein. It is ordered accordingly."

11. Basing on the said judgment, this Court also in Pankaj Kumar Nimayat case (2 supra), on similar facts, allowed the criminal Dr.GRR,J petition by quashing the proceedings against the petitioners - A1 to A7 in CC No.607 of 2011 on the file of III Metropolitan Magistrate, Ranga Reddy District, L.B. Nagar. In the present case also, the 2nd respondent received a sum of Rs.19.00 lakhs from the petitioner and agreed to withdraw the criminal case in Crime No.23 of 2013 filed by her against the petitioner and his family members, but failed to appear before the Court to withdraw the said case or for recording the compromise. As the passports filed by the learned counsel for the petitioner would disclose that the petitioner and the 2nd respondent are citizens of Australia and the 2nd respondent was not turning up for recording the compromise or withdrawing the case, it is considered fit to quash the proceedings against the petitioner in PRC No.131 of 2020 before the V Additional Metropolitan Magistrate cum Additional Junior Civil Judge, Cyberabad, L.B. Nagar.

12. In the result, the Criminal Petition is allowed quashing the proceedings in PRC No.131 of 2020 before the V Additional Metropolitan Magistrate cum Additional Junior Civil Judge, Cyberabad, L.B. Nagar against the petitioner - A1.

Miscellaneous petitions pending, if any, shall stand closed.

_____ Dr. G. RADHA RANI, J January 07, 2022 KTL